

BEFORE THE FEDERAL MARITIME COMMISSION

Francis Sheka Kanu, Complainant

6042 The Plaza

Charlotte, NC 28215

Email: francesgats@gmail.com

v.

Ejike Dickson Eze d/b/a Ejike International Trade Limited, Respondent

1000 Montana Drive

Charlotte, NC 28216

Sealines International and Seamates International, Inc., Respondents

301 E Main St, Suite 1-B

Cherryville, NC 28021

MAERSK, Respondent

9300 Arrowpoint Blvd

Charlotte, NC 28273

DOCKET NO. 25-05

MOTION FOR LEAVE TO AMEND THE COMPLAINT

NOW COMES the Complainant, Francis Sheka Kanu, pursuant to 46 C.F.R. § 502.69 and § 502.70, and respectfully moves the Honorable Administrative Law Judge for leave to amend the Complaint previously filed in this matter on March 10, 2025.

This motion is submitted in compliance with the Order dated June 9, 2025, directing the Complainant to file a Motion for Leave to Amend along with a Proposed Amended Complaint by June 24, 2025.

I. Grounds for Amendment

Complainant seeks leave to amend in order to:

1. Clarify the factual allegations regarding the sequence of events and contractual obligations between the parties;
2. Identify with specificity the statutory violations alleged against each Respondent;
3. Provide detailed evidence of injury and financial loss sustained as a result of Respondents' conduct;
4. Address the plausibility concerns raised in the Court's prior Orders, including the specificity of claims under 46 U.S.C. §§ 41102(a), 41102(c), 41104(a)(4), and 41301(a).

II. Legal Standard

Under 46 C.F.R. § 502.69 and Federal Maritime Commission practice, leave to amend shall be freely granted when justice so requires, especially in the absence of undue delay or prejudice to the opposing party.

The proposed amended complaint cures prior deficiencies by:

- Providing additional factual specificity;
- Distinguishing the role of each respondent in the alleged statutory violations;
- Providing updated contact information to ensure proper service and communication;
- Reinforcing the claims for reparation in the amount of \$80,000 based on new documentary evidence.

III. No Prejudice to Respondents

Allowing this amendment will not prejudice Respondents. Discovery has not yet commenced, and all parties will retain full opportunity to respond to the amended pleading. This amendment is proposed in good faith and for the purpose of clarifying and strengthening Complainant's claims.

WHEREFORE,

Complainant respectfully requests that the Administrative Law Judge:

1. Grant this Motion for Leave to Amend;
2. Accept the attached Proposed Amended Complaint as filed;
3. Deem the amended pleading effective upon granting of this Motion.

Respectfully submitted,

Francis Sheka Kanu

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Date: June 20, 2025

